

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #01	CCRB Case #: 201708272	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/15/2017 12:00 AM, NA, 08/___/2017 7:30 AM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 2/1/2019	Precinct: 07
Date/Time CV Reported Fri, 10/06/2017 5:27 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/06/2017 5:27 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adam Quiles	13313	946657	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Theresa Martinez	28050	927636	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Adam Quiles	Discourtesy: PO Adam Quiles spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On October 6, 2017, § 87(2)(b) filed this complaint with the CCRB online.

On a date which could not be determined in August of 2017, at approximately 7:30 AM, § 87(2)(b) was involved in a dispute with the store manager of § 87(2)(b) at § 87(2)(b) in Manhattan. The manager accused § 87(2)(b) of stealing. § 87(2)(b) denied this, left the store and called 911 from the corner of § 87(2)(b) and § 87(2)(b). PO Adam Quiles and PO Theresa Martinez of the 7th Precinct responded. They entered the deli and spoke to the manager. As they left, PO Quiles allegedly asked § 87(2)(b) “You called us for this bullshit” (**Allegation A: Discourtesy, Unsubstantiated**)? PO Quiles and PO Martinez left. No summons was issued or arrest made during this incident. There was no known video footage of this incident and none was obtained.

Findings and Recommendations

Allegation (A) Discourtesy: PO Adam Quiles spoke discourteously to § 87(2)(b)

§ 87(2)(b) called 911 from in front of § 87(2)(b) after the store owner accused him of stealing (Board Review 01). § 87(2)(b) informed the 911 operator that the deli owner was harassing him. After approximately five minutes, a marked patrol SUV arrived and PO Martinez spoke to § 87(2)(b) and then the officers entered the deli. After another five minutes, the officers left the deli and PO Quiles asked § 87(2)(b) “You called us for this bullshit?” § 87(2)(b) asked PO Quiles what his problem was and PO Martinez stood between them and told PO Quiles to leave it alone. The officers went back to their SUV and left.

PO Quiles stated that he and PO Martinez entered the mini mart and asked if the deli owner had called 911 (Board Review 02). After the deli owner and a few customers inside the deli stated they had not called 911, PO Quiles and PO Martinez walked out of the deli and saw § 87(2)(b) standing by the doorway. § 87(2)(b) stated that he called 911 and wanted the store owner arrested for accusing him of stealing. PO Quiles told § 87(2)(b) there was no arrest to be made. § 87(2)(b) requested that a complaint report be filled out against the deli owner. PO Quiles told him there was no report to fill out. § 87(2)(b) complained that the officers were not helping him and stated “You are going to take this fucking report for me.” PO Quiles explained that he could not assist § 87(2)(b) further and § 87(2)(b) began cursing at him. § 87(2)(b) told PO Quiles that he would take his gun and shoot him in the head. PO Martinez told PO Quiles that they should leave. PO Quiles did not recall stating, “You called us here for this bullshit” or any derivative of the word “shit” while speaking to § 87(2)(b). The officers got back in their vehicle and PO Quiles drove away.

PO Martinez stated that § 87(2)(b) began cursing at officers when she explained to him that there was no report to be filled out and asked him to leave the area as the store owner did not want him inside the deli (Board Review 03). § 87(2)(b) began cursing at the officers and PO Quiles again instructed § 87(2)(b) to leave the area when § 87(2)(b) told PO Quiles that if he did not have a (police) uniform on, he § 87(2)(b) would break his face. The officers continued walking to their patrol vehicle and as they entered it, § 87(2)(b) stated he would take PO Quiles’ gun and shoot him in the head. PO Quiles got out of the vehicle and told § 87(2)(b) to leave the area. PO Martinez got between PO Quiles and § 87(2)(b) and told § 87(2)(b) to leave before

the officers got back in their vehicle and left. PO Martinez did not recall PO Quiles stating, “You called us here for this bullshit,” or using any derivative of the word “Shit” during the incident.

PO Quiles and PO Martinez did not recall PO Quiles’ making the statement “You called us here for this bullshit,” or using any derivative of the word “shit” during the conversation. § 87(2)(g)

Therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 04).
- PO Adam Quiles has been a member-of-service for nine years and has been a subject in five CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- On November 13, 2017, this case was sent to mediation and on March 30, 2018 the case was returned to investigation as the complaint was no longer eligible for mediation.
- A FOIL request was submitted to the NYC Comptroller’s office on April 13, 2018. The results will be included in the case file upon their receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 1

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date